TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JULY 29, 2024
MINUTES

Staff Comments

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Julian Hopkins.
Absent: Aaron Butner, Molly Hall.
Staff: Chris Swalhah, Kara Browder, James Ward, Joe Juan, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Branch moved for approval of the agenda. Ms. Stevens seconded the motion. All in favor.

B. Approval of Minutes

Mr. Branch moved for approval of the minutes. Mr. Hopkins seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

Mr. Daniel Brownstein, 1391 Pondsbury Drive, thanked the Board for their service.

Mr. Swalhah stated that all correspondence received was linked to the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood explained the procedures for the public and administered the oath to those speaking.

G. Business

1. Case V-26-24, 1437 Barbara Street, TMS# 532-11-00-011. Request for relief from §156.303(Table) to allow a 10.3-foot encroachment into the setback (*Deferred from June meeting*) (Correspondence) (Additional Staff Correspondence)

Mr. Swalhah asked for additional time for a total of 8 minutes for his presentation. Hearing no objection, Mr. Wood stated that the additional time was granted. Mr. Swalhah reviewed staff comments with the Board.

Mr. Swalhah asked for additional time. Hearing no objection, Mr. Wood granted additional time to staff for their presentation. Mr. Swalhah continued with his presentation.

Mr. Swalhah read correspondence into the record for the Board.

Mr. James Daratony, 1437 Barbara St, asked if additional information can be provided.

Mr. Branch moved to approve submittal of additional documentation. Ms. Stevens seconded the motion. Motion passed on a 3 to 2 vote with Mr. Branch, Ms. Stevens, and Mr. Wood in favor; Mr. Barrow and Mr. Hopkins opposed.

Mr. Daratony reviewed the request with the Board.

Ms. Kara Browder, Planning staff, stated that there were several site plans submitted showing incorrect setbacks. She stated that after going back and forth, staff requested an as-built survey. The as-built survey showed that the concrete pad was encroaching into the setback, and staff notified Mr. Daratony that he could either remove the portion of concrete that was encroaching into the setback or seek a variance.

Mr. Swalhah gave rebuttal to Mr. Daratony's presentation. He reviewed emails entered into the record showing the footers being installed prior to a building permit being issued and emails from Mr. Daratony that do not mention a request to submit additional information for the Board.

Mr. Daratony offered his rebuttal. He suggested that there was a miscommunication with staff on the concrete pad. He suggested that the tickets should not have been issued. He suggested that the concrete pad did receive a building permit.

The Board convened for a short break at 6:57 pm and reconvened at 7:04 pm.

The Board continued with questions.

Mr. Wood closed public comment and moved to Board deliberation.

Mr. Barrow moved for denial based on the findings that the request does not meet the criteria to grant a variance as demonstrated by the applicant's application that does not address how the request meets the variance criteria and the applicant has not demonstrated how the request meets that criteria through his testimony at this meeting. Mr. Hopkins seconded the motion. All in favor.

2. Case V-27-24, 1627 Paradise Lake Drive, TMS# 560-06-00-186. Request for relief from the strict application of §156.107(A)(2) to allow the placement of a generator within the 3-foot side setback.

Mr. Swalhah reviewed staff comments with the Board.

Mr. Wood asked if the applicant is present. Hearing none, Mr. Wood suggested that the request could be deferred to the end of the meeting.

Mr. Kevin O'Neal, 1623 Paradise Lake Drive, suggested that the request does not meet the criteria for a variance as the property is not unique, there are other properties that have similar conditions, and cost cannot be a consideration for granting a variance. He also stated that the generator would be visible and asked that if the variance is granted it should be properly screened.

Mr. Wood asked if this request can be heard with the applicant not present. Mr. Ward answered in the affirmative.

- *Mr. Branch moved for denial based on the findings that the criteria has not been met. Mr. Hopkins seconded the motion. All in favor.*

3. Case V-28-24, 103 Ronnie Boals Boulevard, TMS# 517-15-00-015. Request for relief from §156.171 to waive the number of required parking spaces.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Joshua Schaap, managing member of LLC, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

Ms. Stevens moved for approval based on the findings that there are extraordinary conditions as it is a non-conforming use and due to layout of the property there are no other options for parking; conditions do not apply to other properties as the building shares the property with another building and there is a lease for use of half the property; denial of the variance would prohibit utilization of the property because if improved or repaired it would mean that the building would have to come into compliance and therefore the parking would be an issue; granting the variance would not be a detriment as the property could be brought into a conforming use and would provide more pervious surface, better drainage, and encourage more green transportation, which would be an improvement for all surrounding properties. Motion failed due to the lack of a second.

Mr. Barrow moved for denial based on the findings that the request does not meet the criteria denial of the request would not prohibit the utilization of the property; there is no proof that granting the variance would not be a detriment as this could mean that parking would carry over to the neighborhood causing congested residential streets and possibly blocking accesses to residences and offices; and moreover, profitability use of the property may not be considered when determining the variance. Mr. Hopkins seconded the motion. Motion passed on a 3 to 2 vote with Mr. Barrow, Mr. Branch and Mr. Hopkins in favor; Ms. Stevens and Mr. Wood opposed.

4. **Case V-29-24, 1617 Long View Road, TMS #559-04-00-070. Request for relief from §156.111(A)(5) to allow an accessory structure to exceed the maximum height requirement by 2-feet 9.5-inches.**

- Mr. Swalhah reviewed staff comments with the Board.
- Mr. David McGuire, owner, reviewed the request with the Board.
- There being no comments, Mr. Wood moved to Board questions.
- Mr. Wood closed public comment.
- *Mr. Branch moved for denial based on the findings that it does not meet criteria for a variance. Ms. Stevens seconded the motion. All in favor.*

5. **Case V-30-24, 559 Klein Street, TMS# 532-09-00-108. Request for relief from §156.111(A)(5) to allow an accessory structure to exceed the maximum height requirement by 6-feet 4-inches.**

Mr. Swalhah reviewed staff comments with the Board.

- Mr. John Hutto, owner, reviewed the request with the Board.
- There being no comments, Mr. Wood moved to Board questions.
- Mr. Wood closed public comment.
- *Ms. Stevens moved for denial based on the findings that the criteria has not been met; even though there was an error on part of the Town, the property can still be utilized. Mr. Branch seconded the motion. All in favor.*

The Board convened for a short break at 8:17 pm and reconvened at 8:24 pm.

6. **Case V-31-24, 847 O'Sullivan Drive, TMS# 559-05-00-101. Request for relief from §156.303(Table) to allow a 4-foot 9.25-inch encroachment into the rear setback.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Kelsey Harper, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that there are extraordinary conditions based on the building location and the number of trees on the property; not apply to other properties due to number of historic trees on properties; not being able to expand living space would prohibit utilization of the property; and there is no detriment to neighbors. Mr. Hopkins seconded the motion. Motion passed on a 3 to 2 vote with Mr. Branch, Mr. Hopkins, and Ms. Stevens in favor; Mr. Barrow and Mr. Wood opposed.*

7. Case V-32-24, 1718 Lacannon Lane, TMS# 558-00-00-914. Request for relief from §156.201 to allow a 15-foot reduction of a Type E Buffer.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jeremy Kruska, representative for owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for denial based on the findings that it does not meet criteria in that denial would not prohibit utilization of the property and that there would be a detriment to the neighbors if approved. Mr. Barrow seconded the motion. Motion passed on a 4 to 1 vote with Mr. Barrow, Mr. Branch, Mr. Hopkins, and Mr. Wood in favor; Ms. Stevens opposed.*

There being no further business, the meeting adjourned at 8:55 pm.

Submitted by,
L. Lynes
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